

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
CHIEF JUDGE WILEY Y. DANIEL**

Courtroom Deputy: Robert R. Keech
E.C.R./Reporter: Tammy Hoffschildt

Date: August 20, 2012

Civil Action No: **09-cv-02413-WYD-KMT**

Counsel:

CROSS CONTINENT DEVELOPMENT,

Victor M. Morales
Katherine A. Kelley

Plaintiff,

v.

TOWN OF AKRON, et al.,

Peter H. Doherty
Mary A. Wells

Defendants.

COURTROOM MINUTES

TRIAL TO JURY (DAY 1)

9:33 a.m. Court in Session - Jury not present

APPEARANCES OF COUNSEL.

Court's opening remarks.

Plaintiff's Motion in Limine Regarding Character Evidence of Richard Kusel (ECF Doc. No. 140), filed August 17, 2012, is raised for argument.

9:36 a.m. Argument by Defendants (Ms. Wells).

9:40 a.m. Argument by Plaintiff (Ms. Kelley).

9:50 a.m. Argument by Defendants (Ms. Wells).

9:54 a.m. Argument by Plaintiff (Ms. Kelley).

ORDERED: Plaintiff's Motion in Limine Regarding Character Evidence of Richard Kusel (ECF Doc. No. 140), filed August 17, 2012, is **GRANTED IN PART and DENIED IN PART AS REFLECTED ON THE RECORD.**

9:56 a.m. Court in Recess

10:17 a.m. Court in Session - Jury present

Court's opening remarks to prospective jurors.

10:19 a.m. Voir dire oath given.

10:29 a.m. Voir dire by Court commences.

12:10 p.m. Court in Recess

1:34 p.m. Court in Session - Jury present

1:34 p.m. Voir dire by Court continues.

1:49 p.m. Voir dire by Plaintiff (Ms. Kelley).

1:52 p.m. Voir dire by Defendants (Ms. Wells).

Peremptory challenges by Plaintiff:

- 1) 100201858
- 2) 100232674
- 3) 100234068

Peremptory challenges by Defendant:

- 1) 100233381
- 2) 100204970
- 3) 100236207

2:25 p.m. Jury sworn to try:

- | | |
|--------------|---------------|
| 1) 100223737 | 2) 100212991 |
| 3) 100228211 | 4) 100226685 |
| 5) 100218713 | 6) 100211029 |
| 7) 100213288 | 8) 100206250 |
| 9) 100222663 | 10) 100228829 |

2:26 p.m. Court reads preliminary jury instructions.

2:39 p.m. Bench conference regarding sequestration of witnesses.

Exhibit(s) 1, 2, 3, 4, 10, 11, 16, 22, 48, 55, 56, 57, 58, 64, 65, 66, 70 RECEIVED.

2:43 p.m. Opening statement by Plaintiff (Ms. Kelley).

3:20 p.m. Court in Recess

3:44 p.m. Court in Session - Jury enters

3:46 p.m. Opening statement by Defendants (Ms. Wells).

4:22 p.m. Plaintiff's witness **Richard Alan Kusel** sworn.

Direct examination by Plaintiff (Ms. Kelley).

EX ID: 22

4:47 p.m. Court in Recess - TRIAL CONTINUED.

TOTAL TIME: 5:05